

PETITION - CLEAR AN OLDER WASHINGTON CONVICTION AFTER YOU FINISHED PROBATION

IN THE COURT

(Clerk of the sentencing court - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

DISMISSAL AFTER PROBATION AND VACATION OF A PRE-1984 CONVICTION, RCW 9.95.240

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under RCW 9.95.240(1); RCW 9.95.240(2)(a); RCW 9.95.240(2)(b); RCW 9.94A.640(2); RCW 9.94A.030(11)(b) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Read at source on 2026-08-06, RCW 9.95.240 is one of only four routes RCW 9.94A.030(11)(b) recognises for removing a conviction from criminal history, and it has two distinct limbs. Subsection (1): every defendant who has fulfilled the conditions of probation for the entire period, or who was discharged from probation before the period ended, may at any time before the maximum period of punishment for the offence expires be permitted in the court's discretion to withdraw a guilty plea and enter a plea of not guilty, or, where convicted after a plea of not guilty, have the verdict set aside, and the court may then dismiss the information or indictment, after which the person is released from all penalties and disabilities resulting from the offence. The probationer is to be informed of this right in their probation papers. A proviso preserves the conviction for pleading and proof in any subsequent prosecution for any other offence, with the same effect as if probation had not been granted. Subsection (2)(a): after the period of probation has expired, the defendant may apply to the sentencing court for vacation of the record of conviction under RCW 9.94A.640, and the court may in its discretion clear the record if it finds the defendant has met the equivalent of the RCW 9.94A.640(2) tests as those tests would be applied to a person convicted of a crime committed before 1 July 1984. That fixes the scope the controlling review could not: this is the pre-Sentencing Reform Act route. Subsection (2)(b) carries the same clerk transmittal to the Washington State Patrol identification section and any local police agency, the same immediate-update and FBI transmittal duties, and the same bar on dissemination except to criminal justice enforcement agencies.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record

itself.

[C1 - applicant name] What is your full legal name, and any other name the case was filed under?

.....
.....

[C2 - date of birth] What is your date of birth?

.....
.....

[C3 - conviction identity] What were you convicted of, and which exact RCW or municipal ordinance was it under?

.....
.....

[C4 - sentencing court] Which court sentenced you - district, municipal or superior - and in which county or city?

.....
.....

[C5 - cause number] What is the cause number?

.....
.....

[C6 - sentencing dates] What is the sentencing date, the date you were released from any confinement, and the date any supervision or probation ended?

.....
.....

[C7 - pending charges] Do you have any charge pending anywhere - Washington, another state, federal court or tribal court?

.....
.....

[C8 - new convictions] Have you been convicted of any new crime since, in this state, another state, or federal or tribal court?

.....
.....

[C9 - probation fulfilled] Did you complete the whole period of probation, or were you discharged from probation early?

.....
.....

[C10 - probation end date] On what date did the probation period end?

.....
.....

[C11 - offense before 1984] Was the offence committed before 1 July 1984?

.....
.....

[C12 - maximum punishment period] What was the maximum sentence the law allowed for this offence, and has that much time passed since sentencing?

.....
.....

[C13 - plea or verdict] Did the case end in a guilty plea, or in a verdict after a not guilty plea?

.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under RCW 9.95.240(1); RCW 9.95.240(2)(a); RCW 9.95.240(2)(b); RCW 9.94A.640(2); RCW 9.94A.030(11)(b).

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:WA:wa_vac_post_probation_9_95_240

PROPOSED ORDER - CLEAR AN OLDER WASHINGTON CONVICTION AFTER YOU FINISHED PROBATION

IN THE COURT
(Clerk of the sentencing court)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:

.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under RCW 9.95.240(1); RCW 9.95.240(2)(a); RCW 9.95.240(2)(b); RCW 9.94A.640(2); RCW 9.94A.030(11)(b). The Court, having considered the petition and anything filed with it,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED

.....

(The court signs here if, and only if, it grants the petition.)

Route: obligation:track-only:WA:wa_vac_post_probation_9_95_240

FILING INSTRUCTIONS - CLEAR AN OLDER WASHINGTON CONVICTION AFTER YOU FINISHED PROBATION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Dismissal After Probation and Vacation of a Pre-1984 Conviction, RCW 9.95.240.

Read at source on 2026-08-06, RCW 9.95.240 is one of only four routes RCW 9.94A.030(11)(b) recognises for removing a conviction from criminal history, and it has two distinct limbs. Subsection (1): every defendant who has fulfilled the conditions of probation for the entire period, or who was discharged from probation before the period ended, may at any time before the maximum period of punishment for the offence expires be permitted in the court's discretion to withdraw a guilty plea and enter a plea of not guilty, or, where convicted after a plea of not guilty, have the verdict set aside, and the court may then dismiss the information or indictment, after which the person is released from all penalties and disabilities resulting from the offence. The probationer is to be informed of this right in their probation papers. A proviso preserves the conviction for pleading and proof in any subsequent prosecution for any other offence, with the same effect as if probation had not been granted. Subsection (2)(a): after the period of probation has expired, the defendant may apply to the sentencing court for vacation of the record of conviction under RCW 9.94A.640, and the court may in its discretion clear the record if it finds the defendant has met the equivalent of the RCW 9.94A.640(2) tests as those tests would be applied to a person convicted of a crime committed before 1 July 1984. That fixes the scope the controlling review could not: this is the pre-Sentencing Reform Act route. Subsection (2)(b) carries the same clerk transmittal to the Washington State Patrol identification section and any local police agency, the same immediate-update and FBI transmittal duties, and the same bar on dissemination except to criminal justice enforcement agencies.

WHERE IT GOES

Clerk of the sentencing court

File the motion in the sentencing court. Relief is discretionary on both limbs. No Washington Courts pattern form for this section was identified by the controlling review or on this pass, so the pleading is drafted on the RCW 9.94A.640 model that Washington clerks expect.

Venue: The sentencing court, which on the subsection (2)(a) limb is the superior court that imposed the pre-1984 sentence.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: Not established at source; the packet does not quote a court filing fee and directs the participant to ask the clerk. Fee waiver as recorded: Not established for the court filing fee.

WHO MUST BE SERVED

Service as recorded: Serve the prosecutor's office for the sentencing court and file proof of service. Notice

as recorded: Serve the prosecuting attorney for the sentencing court. Relief is discretionary on both limbs.

WHAT THE RECORD SAYS YOU MUST KNOW

- RCW 9.94A.030(11)(b) states that a conviction may be removed from a defendant's criminal history only if it is vacated under RCW 9.96.060, 9.94A.640, 9.95.240, or a similar out-of-state statute, or by a governor's pardon. Section 9.95.240 is one of only four routes the sentencing statute recognizes.
- In any subsequent prosecution for any other offence, a conviction dismissed under RCW 9.95.240(1) may still be pleaded and proved, and has the same effect as if probation had not been granted or the information or indictment dismissed.
- Vacation does not make the court record private, or remove the case from court indexes and public court websites. Never call Washington vacation expungement.
- Vacation does not restore firearm rights, which run through RCW 9.41.041.
- Vacated convictions still count for recidivist charging. RCW 9.96.060(8)(c) provides that a conviction vacated on or after 2019-07-28 qualifies as a prior conviction for the purpose of charging a present recidivist offense committed on or after that date.
- Local county superior court rules may require additional documents. Every packet carries a local-check instruction rather than assuming the pattern form set is complete.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any pending charge in Washington, another state, federal court, or tribal court.
- Any domestic violence element, charged or findable from the court file.
- Any protection, no-contact, antiharassment or civil restraining order currently in effect, or violated in the last five years.
- Any DUI, physical control, or alcohol or drug related driving offence, including a reduced charge.
- Any firearm, deadly weapon or sexual motivation enhancement.
- Any question about offence class or the exact RCW.
- Immigration consequences.
- Any participant whose real goal is firearm rights restoration, which is a separate proceeding under RCW 9.41.041.
- It is unclear whether the offence was committed before 1 July 1984.
- The maximum period of punishment may already have expired, which closes the subsection (1) limb.
- Whether the conditions of probation were fulfilled for the entire period is disputed.
- The participant expects the conviction to disappear for all purposes; the subsection (1) proviso preserves it for later prosecutions.

THE PAGES IN THIS SET

- wa_vac_post_probation_9_95_240-primary-filing-1: the composed petition, on this route's own statutory ground (Clear an older Washington conviction after you finished probation)
- wa_vac_post_probation_9_95_240-proposed-order-2: the proposed order the court may sign; every decision line is the court's and is left blank (Clear an older Washington conviction after you finished probation)

Route: obligation:track-only:WA:wa_vac_post_probation_9_95_240

PETITION - ASK THE WASHINGTON STATE PATROL TO DELETE A RECORD OF A CASE THAT DID NOT END IN CONVICTION

IN THE COURT
(Washington State Patrol - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

REQUEST TO DELETE NON-CONVICTION CRIMINAL HISTORY RECORD INFORMATION,
RCW 10.97.060

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under RCW 10.97.060; RCW 10.97.030(2); RCW 10.97.040; RCW 10.97.110 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

The only real deletion mechanism in Washington, and it does not touch convictions. Non-conviction criminal history record information is subject to deletion from generally searched criminal justice agency files where two years or more have passed since a favourable disposition, or three years from arrest, citation or warrant for an offence where no conviction was obtained. The request goes to the Washington State Patrol rather than to a court: it is an agency request, not a petition. Two bars apply outright, the person being a fugitive and the case remaining under active prosecution. Beyond those the agency retains discretion to refuse on three common grounds: the disposition was a deferred prosecution or similar diversion; the person has a prior felony or gross misdemeanour conviction; or the person has been arrested for or charged with another crime during the intervening period. WashingtonLawHelp states directly that it is hard for information to qualify as non-conviction data under the rules, which makes deletion hard to obtain, and that expectation must be set before anyone pays. Where deletion is refused there is a fallback: RCW 10.97.040 requires agencies to check with the WSP for the most current and complete information before reporting a conviction, and RCW 10.97.110 supports a suit, potentially with attorney fees, against an agency that violates the requirement.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - applicant name] What is your full legal name, and any other name the case may have been under?

.....
.....

[C2 - date of birth] What is your date of birth?

.....
.....

[C3 - arrest details] On what date were you arrested or cited, by which agency, and for what?

.....
.....

[C4 - disposition detail] How did the case end, and on what date - dismissed, acquitted, or no charges ever filed?

.....
.....

[C5 - deferred prosecution] Was the case resolved through a deferred prosecution or a diversion programme?

.....
.....

[C6 - prior convictions] Do you have any prior felony or gross misdemeanour conviction?

.....
.....

[C7 - intervening arrests] Have you been arrested for or charged with any other crime since?

.....
.....

[C8 - fugitive or active] Is there any outstanding warrant for you, or is this case still being prosecuted?

.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under RCW 10.97.060; RCW 10.97.030(2); RCW 10.97.040; RCW 10.97.110.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville

39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

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Route:

obligation:track-pathway:WA:wa_del_nonconviction:non-conviction-record-deletion-under-rcw-10-97-06

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FILING INSTRUCTIONS - ASK THE WASHINGTON STATE PATROL TO DELETE A RECORD OF A CASE THAT DID NOT END IN CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Request to Delete Non-Conviction Criminal History Record Information, RCW 10.97.060.

The only real deletion mechanism in Washington, and it does not touch convictions. Non-conviction criminal history record information is subject to deletion from generally searched criminal justice agency files where two years or more have passed since a favourable disposition, or three years from arrest, citation or warrant for an offence where no conviction was obtained. The request goes to the Washington State Patrol rather than to a court: it is an agency request, not a petition. Two bars apply outright, the person being a fugitive and the case remaining under active prosecution. Beyond those the agency retains discretion to refuse on three common grounds: the disposition was a deferred prosecution or similar diversion; the person has a prior felony or gross misdemeanour conviction; or the person has been arrested for or charged with another crime during the intervening period. WashingtonLawHelp states directly that it is hard for information to qualify as non-conviction data under the rules, which makes deletion hard to obtain, and that expectation must be set before anyone pays. Where deletion is refused there is a fallback: RCW 10.97.040 requires agencies to check with the WSP for the most current and complete information before reporting a conviction, and RCW 10.97.110 supports a suit, potentially with attorney fees, against an agency that violates the requirement.

WHERE IT GOES

Washington State Patrol

Submit the deletion request to the WSP through its non-conviction deletion request process. No court is involved and no order is sought. The agency decides, and three of its refusal grounds are common.

Venue: Not a court route. The request goes to the Washington State Patrol, which holds the criminal history record information.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: RCW 10.97.060 states no fee for the request itself. The WSP charges for the record products: approximately \$11 for the WATCH conviction check, \$12 plus a fingerprint card for the non-conviction record, \$32 for a mailed conviction record, \$58 for a fingerprint-card record and \$15 for a notarised letter. Verify the fee table live at intake rather than storing it. Fee waiver as recorded: The in-person non-conviction record review carries no fee, though it requires fingerprints and allows only limited inspection time.

WHO MUST BE SERVED

Service as recorded: none. The request is submitted to the WSP. Notice as recorded: none. There is no notice or objection process; the agency decides.

WHAT THE RECORD SAYS YOU MUST KNOW

- Non-conviction deletion is discretionary on three common grounds. Set expectations before anyone pays.
- Fallback where deletion is refused: the accuracy provisions at RCW 10.97.040 and the remedy at RCW 10.97.110.
- The non-conviction record requires a fingerprint card, not the \$11 WATCH check.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The record may not qualify as non-conviction data under RCW 10.97.030(2).
- The disposition was a deferred prosecution or similar diversion, which is a common refusal ground.
- The participant has a prior felony or gross misdemeanor conviction, which is a common refusal ground.
- The participant has been arrested for or charged with another crime in the intervening period, which is a common refusal ground.
- There is an outstanding warrant, or the case remains under active prosecution.
- The agency refuses and the participant wants to challenge it; that is the RCW 10.97.110 remedy and needs a lawyer.
- Immigration consequences.
- What LegalEase cannot complete: the agency's decision, which is discretionary on three common grounds.

THE PAGES IN THIS SET

- wa_del_nonconviction-primary-filing-1: the composed petition, on this route's own statutory ground (Ask the Washington State Patrol to delete a record of a case that did not end in conviction)

Route:

obligation:track-pathway:WA:wa_del_nonconviction:non-conviction-record-deletion-under-rcw-10-97-06
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